

## 26STCV02831 26STCV02831

County: los-angeles

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Department: 730

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Case Number: 26STCV02831 Hearing Date: September 17, 2026 Dept: 730

Superior Court of  
California

County of Los Angeles

Department  
730

MAE  
MORGAN STAFFING COMPANY,

Plaintiff,

vs.

BRENDA  
PATRON KODANI, et al.,

Defendants.

Case No.:

26STCV02831

Hearing  
Date:

September

17, 2026

## ORDER

### SUSTAINING DEMURRER TO CROSS-COMPLAINT

AND denying motion to strike

#### I. BACKGROUND

Plaintiff Mae Morgan Staffing Company ("Mae Morgan") employed Defendants Brenda Patron Kodani ("Kodani") as a manager for Mae Morgan's elderly home-care referral business. Kodani allegedly violated Mae Morgan's "Employee Proprietary Information and Non-Competition Agreement" (the "agreement") by providing confidential information to Kodani's new employers and Mae Morgan's competitors Defendants Complete In-Home Care Services, Inc. ("Complete") and Cuthkelvin ("Cuthkelvin"). Mae Morgan sued Defendants for five causes of action, including breach of written contract.

On December 12, 2025, Kodani filed a Cross-Complaint ("CC") against Plaintiff and Cross-Defendant Jeannie Yoon ("Yoon") for ten causes of action, primarily labor code violations. Kodani's cross-complaint alleges that Mae Morgan and Mae Morgan's owner, Yoon, did not properly pay Kodani for her work (including large amounts of overtime), denied Kodani required meal and rest breaks, failed to reimburse Kodani for expenses associated with Kodani's cell-phone, and forced Kodani to sign an illegal non-compete, among other alleged wrongdoings.

On February 23, 2026, Yoon filed the instant demurrer to the first through sixth causes of action to Kodani's Cross-Complaint with motion to strike. Kodani opposed. Yoon replied.

#### II. LEGAL STANDARD

Code of Civil Procedure section 430.10[1]

states: "The party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of the following grounds: (a) The court has no jurisdiction of the subject of the cause of action alleged in the pleading; (b) The person who filed the pleading does not have the legal capacity to sue; (c) There is another action pending between the same parties on the same cause of action; (d) There is a defect or misjoinder of parties; (e) The pleading does

not state facts sufficient to constitute a cause of action; (f) The pleading is uncertain. As used in this subdivision, "uncertain" includes ambiguous and unintelligible; and (g) In an action founded upon a contract, it cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

As a general matter, in a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) "A demurrer tests the pleading alone, and not the evidence or facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Ibid.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, "[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend." (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245).

### III. DISCUSSION

Yoon demurs to the first through sixth causes of action for failure to state sufficient facts to establish the causes of action and on the basis that the claims are not proper as they do not arise out of the same transaction, occurrence, or series of transactions or occurrences as alleged in the complaint.

#### A. Employment Relationship

Yoon first demurs to the

first through sixth causes of action on the basis that Kodani insufficiently alleged Yoon was Kodani's 'employer' within the meaning of the labor code. All relevant causes of action are pled under the Labor Code. (See LC §§ 200, 201, 202, 203, 226, 226.3, 226.6, 226.7 510, 512, 1174, 1174.5, and 2802.) These causes of action only allow an employee to recover for alleged wrongdoing by their employer. Therefore, a requisite condition to pleading any causes of action under the relevant Labor Code sections is alleging facts in support of an employment relationship between Kodani and Yoon.

Pursuant to the Labor Code, an employer is a person or entity which employs any person or persons to perform services for a wage or salary. (LC § 1132.2.) A person employs another through three alternative means: 1) by exerting control over the wages, hours or working conditions of another person; 2) to suffer or permit to work; or 3) to engage another person, creating a common law employment relationship (Martinez v. Combs (2010) 49 Cal.4th 35, 64.) To establish a party 'suffered' or 'permitted' work, said party must have the power to either cause or prevent another from working under some sort of employment structure. (Futrell v. Payday California, Inc. (2010) 190 Cal.App.4th 1419, 1429.) A common law employment relationship generally evaluates whether the alleged employer had 'control of details,' such as tools, place of business, length of time, method of payment, and supervision. (Ibid.)

Here, Kodani has not pled sufficient facts to establish any relationship in which Yoon employed Kodani. Yoon is identified in the Cross-Complaint as Mae Morgan's agent and owner. (CC ¶¶ 4, 16.) Yoon is also identified as knowing about the various alleged labor code violations and requiring Kodani to sign the illegal non-compete agreement. (CC ¶¶ 14, 16, 17-20.) Yoon is not identified as an employer, but rather as "the owner of Mae Morgan" who was in a position to correct the various violations against Kodani, but failed to do so, "making her individually liable to Kodani." (CC ¶¶ 40, 46, 54, 61, 68, 73.)

The allegations attributable to Yoon do not meet any definition of 'employer' as identified under the Labor Code or associated case law. There are no allegations that Yoon affirmatively had control over Yoon's wages, hours, working conditions, or other details. Corporate officers and agents are not automatically liable for wage violations by virtue of their corporate role absent specific showing of personally exercised control. (Martinez at 49 Cal.4th 64.) Kodani has not pled any facts indicating personal control by Yoon over Kodani's work or wages, beyond Yoon's status as owner and

agent of Mae Morgan. Therefore, these causes of action are subject to demurrer.

## B. Proper

### Cross-Claims

Yoon also demurs on the basis that the first through sixth causes of action are not proper cross-claims as they do not arise out of the same transaction or occurrence as the underlying allegation. Section 428.10 only allows a party to file a cross-claim against non-parties to the underlying action if the causes of action asserted arise out of the same transaction, occurrence, or series of transactions in the cause brought against the party OR if it asserts as claim, right, or interest in the property or controversy brought against the party.

Align Technology,

Inc. v. Tran (2009) 179 Cal.App.4th 949 is instructive.

In Align, an employer sued its former employee for breach of non-disclosure agreement after the employee allegedly used the employer's confidential information to assist a start-up competitor. (Id. at 954.) The employee demurred on the basis that the action was barred under the compulsory cross-complaint statute, as, in a prior action, the employee had filed a cross-complaint for wrongful termination, and the employer had failed to assert claims at this time. (Id. at 953.) The Align court agreed with the employee, finding that the employee's wrongful termination claim was logically related to the breach of non-disclosure agreement claim as they arose out of the same employment relationship. (Id. at 962.) "In this regard, we find the reasoning of a case applying the federal compulsory counterclaim statute useful: 'The word 'transaction' in Rule 13(a) cannot be read in such a restrictive sense as to limit compulsory counterclaims in actions for breach of contract to those addressed to the specific breach on which a plaintiff bases his claim for breach. The spirit and intent of Rule 13(a) requires that the entire contractual relationship be deemed to be included within the word 'transaction' in cases sounding in contract.'" (Ibid., citations omitted.)

Mae Morgan's

underlying complaint alleges Kodani misappropriated information and trade secrets obtained via Kodani's employment with Mae Morgan, or that Kodani breached her obligations as an employee to her employer. Kodani's cross-complaint asserts that Mae Morgan, and Yoon (as owner), breached their

obligations as employers to their employee, Kodani. Both concern the entire contractual relationship between Kodani and her employers. So long as Kodani sufficiently pleads Yoon was Kodani's employer at all relevant times, Kodani's claims are within the scope of the same transaction.

#### C. Motion to Strike

Yoon

requests the Court strike all requests for punitive damages, specifically identifying the claims for punitive damages in the ninth and tenth causes of action for intentional interference with prospective economic advantage and violation of Penal Code section 502. Whether a party may plead a request for punitive damages is based upon the allegations of a complaint. Facts must be alleged in the pleading to support a claim for oppression, fraud, or malice. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 161.)

“‘Malice’ means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294, subd. (c)(1).) A plaintiff must establish the defendant was aware of the probable dangerous consequences of his conduct and that he willfully and deliberately failed to avoid those consequences to support an award of punitive damages based on conscious disregard of the safety of others. (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 867.) “‘Oppression’ means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Civ. Code § 3294, subd. (c)(2).) “‘Fraud’ means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (*Id.*, § 3294, subd. (c)(3).)

Yoon argues neither cause of action presents allegations that Yoon acted with malice, oppression, or fraud. The Court disagrees. The ninth cause of action alleges Yoon sought to interfere with Kodani's employment by threatening to sue Kodani and Kodani's new employers over an allegedly illegal and void non-compete agreement. (CC ¶¶ 90, 92.) If the non-compete agreement is illegal and void, as alleged in the Cross-Complaint, threatening enforcement of an illegal agreement to interfere

with a party's livelihood may fit within the definition of either 'oppression' or 'fraud' for purposes of punitive damages.

The tenth cause of action

for violation of Penal Code section 502 explicitly allows the recovery of punitive damages: "In any action brought pursuant to this subdivision for a willful violation of the provisions of subdivision (c), where it is proved by clear and convincing evidence that a defendant has been guilty of oppression, fraud, or malice as defined in subdivision (c) of Section 3294 of the Civil Code, the court may additionally award punitive or exemplary damages." (Penal Code § 502, subd. (e)(4).) Kodani is entitled to request punitive damages, by statute.

The Court denies the motion to strike.

D. Leave to Amend

The burden is on the pleading party to show in what manner he can amend the complaint, and how that amendment will change the legal effect of the pleading. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 349; Hendy v. Losse (1991) 54 Cal.3d 723, 742.) Kodani requests leave to amend, in part, on the basis that she can provide additional facts to demonstrate Yoon's liability under Labor Code section 558.1. The Court notes that while liability under Labor Code section 558.1 was not pled within the Cross-Complaint, it does encapsulate the scope of the allegations. Therefore, the Court finds basis to grant leave to allow Kodani an attempt to present an actionable Cross-Complaint against Yoon.

#### IV. CONCLUSION

Yoon's demurrer to the Cross-Complaint is SUSTAINED, with 30 days leave to amend. Yoon's motion to strike is DENIED.

Yoon ordered to give notice.

DATED:

September 17, 2026

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Hon. Alexander C.D. Giza

Judge of the Superior Court

PLEASE

TAKE NOTICE:

- Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

- If a

party intends to submit on this tentative ruling, the party must send an email to the court at [SMCDEPT730@lacourt.org](mailto:SMCDEPT730@lacourt.org) with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

- Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

- If

the parties neither submit nor appear at hearing, the Court may take the motion off calendar or adopt the tentative ruling as the order of the Court. After the Court has issued a tentative ruling, the Court may prohibit the withdrawal of the subject motion without leave.

[1] Undesignated

statutory references are to the Code of Civil Procedure.